

The Sikh Gurdwaras Board Election Rules, 1959

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Union of India - Act

The Sikh Gurdwaras Board Election Rules, 1959

UNION OF INDIA

India

The Sikh Gurdwaras Board Election Rules, 1959

Rule THE-SIKH-GURDWARAS-BOARD-ELECTION-RULES-1959 of 1959

Published on 16 July 1959

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The Sikh Gurdwaras Board Election Rules, 1959

Published vide Punjab Government Notification No. 1207 Gurdwaras, dated the 16th July, 1959.

1108.

1.

Short title.

- These rules may be called the Sikh Gurdwaras Board Election Rules 1959.

2.

Definitions.

- In these rules unless the context otherwise requires, -

(a)

"Act" means the Sikh Gurdwaras Act, 1925;

(b)

"agent" means any person appointed in writing by a candidate at an election to be agent for the purpose of these rules, with the acceptance in writing by such person of the office of such agent, whether as election agent, polling agent or counting agent;

(c)

"Board", "Commissioner", "Gurdwara Election" and "Resident" shall have the same meaning as are respectively assigned to them in the Act;

(d)

"constituency" means a constituency for the election of a member or members of the Board;

(e)

"election" means an election to fill a seat or seats in the Board and "elector", in relation to a constituency means a person whose name is for the time being entered in the electoral roll of the that constituency;

(f)

"form" means a form appended to these rules and includes a translation thereof in any other language;

(g)

"non-reserved seat" means a seat not reserved for Scheduled Castes [or for women]

[Added by Notification No. G.S.R. No. 278(E), dated 4.4.2002 (w.e.f. 16.7.1959)]

;

(h)

"reserved seat" means a seat reserved for Schedule Castes [or for women]

[Added by Notification No. G.S.R. No. 278(E), dated 4.4.2002 (w.e.f. 16.7.1959)]

;

(i)

"roll" means the electoral roll of a constituency; and

(j)

"Scheduled Castes" means all such castes, races or tribes or parts of or groups within such castes, races or tribes as have been specified to be 'Scheduled Castes' in relation to [the concerned State]

[The words [the State of Punjab] substituted by Central Government Notification dated 26.7.1978.]

under Article 341 of Constitution of India.

(k)

["State" means the State of Punjab or the State of Haryana or the State of Himachal Pradesh in relation to the transferred territory within the meaning of the Punjab Reorganisation Act, 1966, or the Union Territory of Chandigarh as the case may be]

[Added by Central Government Notification dated 26.7.1978.]

3.

Registration of voters.

(1)

Any Sikh more than twenty one years of age, who wishes to have his name registered as a voter in any constituency in which he is resident, may register his name with the Patwari of the Revenue estate in which he is resident or, if he is a resident in a town, with such person as the Deputy Commissioner of the district in which such town is situated may appoint for the purpose by notice posted at his office and at the office of the local authority of such town, or with the Secretary of local authority, if the Deputy Commissioner does not post any notice in respect of the appointment of any such person, provided that if he is a resident in more than one constituency, he shall not register his name as a voter in more than one constituency and his name, shall, subject to the provisions of these rules, remain registered as voter in the constituency in which he elects first to have it registered and shall not be registered in any other constituency so long as he remains a resident in the constituency in which he elects first to have his name registered :

Provided that no person shall be registered who does not make a declaration as set out in [Form I]

[Substituted 'Form I and Form IA, as may be appropriate' by Notification No. G.S.R. 1005(E), dated 8.8.2017 (w.e.f. 16.7.1959).]

appended to these rules either, if he be literate, by signing the form after striking out inapplicable matter, or if he be illiterate by repeating the declaration, as read out from the form after striking out matter inapplicable to the case, and

thereafter thumb-marking the form.

(2)

If a patwari or any person appointed by the Deputy Commissioner for the registration of names under the provisions of sub-rule (1), or the Secretary of the local authority as the case may be, refuses or neglects to enter the name of any person who applies to have his name registered, such person may at any time during the preparation of the electoral rolls apply to the Deputy Commissioner to have his name registered and if such person is entitled to have his name registered, the Deputy Commissioner shall direct to registration of his name.

[4. Returning Officer. - (1) For every constituency, the Commissioner, Gurdwara Elections of the State in which the constituency is situated, shall by notification in the Official Gazette, appoint a Returning Officer who shall be an officer of the Government, not below the rank of an Assistant Commissioner or Extra Assistant Commissioner :

Provided that nothing in this rule shall prevent the Commissioner, Gurdwara Election from appointing the same person to be the returning officer for more than one constituency.

(2)

It shall be the general duty of the returning officer at any election to do all acts and things as may be necessary for effectually conducting the election in the manner provided by the Act and the rules or orders made thereunder.

(3)

The returning officer may delegate any of his functions to any officer of the rank of Assistant Commissioner or Extra Assistant Commissioner, if he is unavoidably prevented from performing the same.]

[Substituted vide MOH Notification No. G.S.R. 376(E), dated 23.8.1996.]

[4-A General duties of the Deputy Commissioner. - The Deputy Commissioner shall co-ordinate and supervise all work in connection with the conduct of the election in all the constituencies or parts thereof falling within the district.]

[Inserted vide MOH Notification No. G.S.R. 376(E), dated 23.8.1996.]

5.

[Form of rolls. -

[Substituted by Central Government Notification dated 26.7.1978.]

The roll for each constituency shall be in such form and in such language as the Chief Commissioner, Gurudwara Elections, may specify.]

6.

Preparation and publication of preliminary rolls.

(1)

The Deputy Commissioner shall commence the preparation of the roll on such date as the [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

may direct, and, as soon as may be, after the roll is prepared shall publish it together with a notice giving the names and designations, or, in the case of officials, the designations only, and the addresses, of the revising authorities to whom claims or objections relating to the roll may be presented and the date, not less than twenty-one days from the date of publication of the roll by which such claims or objections must be presented.

(2)

The roll and the notice prescribed in sub-rule (1) shall be published by being posted up at the office of the returning officer and at the office of the Deputy Commissioner of each district in which a part of the constituency is situated; and such portion of the roll as the returning officer may deem fit together with the notice shall be posted up at the office of each tahsil in which the area comprising the constituency or part thereof is situated at the office of every patwari, [-]

[The words [at every post office] omitted by Central Government Notification dated 28.9.1978.]

by and at every Notified Sikh Gurdwara situated in such area :

Provided that it shall not be necessary to post the notice or the roll at the office of any patwari in whose circle no voter has been registered as a resident [-]

[The words [nor at any post office in the area served by which no voter has been registered as a resident]omitted by Central Government Notification dated 28.9.1978.]

[Provided further that the roll published at the office of the Deputy Commissioner shall not be rendered invalid on the ground merely that it does not contain the roll in relation to any part or parts of a constituency which have become

inaccessible due to climatic conditions or otherwise]

[Proviso added by Central Government Notification dated 28.7.1978.]

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7.

Application and jurisdiction of revising authority.

- The Deputy Commissioner may appoint any person whom he deems fit to act as a revising authority and may specify the revenue estate, municipal area, notified area, cantonment area, zail, patwar circle, tahsil, sub-division or district from residents of which such revising authority may receive claims or objections with regard to a roll.

8.

Presentation of claims and objections with regard to roll.

(1)

When a roll has been published under the provisions of rule 6, claims and objections relating to the inclusion of names in, or other exclusion from, the roll may be presented to the appropriate revising authority named in the notice published with the roll by the date specified in such notice provided that :-

(a)

a claim or objection shall not relate to more than one person, shall be in writing, shall be verified by the claimant or the objector and shall be presented to the appropriate revising authority personally by the claimant or objector or by an agent duly authorised in writing or be sent by the post of the revising authority, so as to reach him within the specified period; and

(b)

a claim or objection not lodged within the specified period shall be rejected.

(2)

When objection is made to the inclusion in the electoral roll of any person whose name appears therein or to any particular in any entry in the roll, such objection shall contain in respect of such person or entry as the case may be all the particulars entered in the roll and shall be lodged in triplicate.

(3)

No person shall prefer an objection to the inclusion of any name in the electoral roll for a constituency unless his name is already included in the electoral roll of that constituency.

(4)

No application for the transfer of a name from the electoral roll of one constituency to that of another constituency shall be entertained. If any person desires such a transfer, he shall prefer an objection to the inclusion of his name in the former roll, and a separate claim for the registration of his name in the latter roll.

(5)

The revising authority shall maintain registers of claims and objections in form II and III in which he shall cause to be entered at the time of its receipt particulars of every claim or objection received.

9.

Posting of list of claims and objections.

(1)

When a revising authority receives an objection presented under the provisions of rule 8, he shall cause one copy of it to be served on the person to whom objection pertains, provided that if an objection or claim is presented by a person from whom he is not authorised to receive it under the provisions of rule 7, he shall return it to the person presenting it for presentation to the appropriate revising authority.

(2)

Subject to such instructions as may from time to time be issued in this behalf by the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

the revising authority shall post at his office a list of all claims and objections received in time together with a notice showing the dates on which and the places at which such claims and objections will be heard, provided that in no case shall a date be fixed less than seven days or more than twenty-eight days from the date on which such list is posted.

10.

Disposal of claims and objections.

(1)

On the date and at the place fixed under the provisions of rule 9, the revising authority shall call up the cases in the order in which they are entered in the list, shall dismiss any case in which the claimant or objector is not present or is not represented and shall pass such order in any other case as he may deem fit after hearing the parties concerned or their authorised agent and such evidence as may be produced and may appear to him to be necessary.

(2)

The orders of a revising authority passed under the provisions of sub-rule (1) shall be final.

(3)

A revising authority, as soon as he has disposed of all claims and objections presented to him, and, in any case, not later than thirty days from the date by which under the provisions of sub-rule (1) of rule 6 claims and objections must be presented shall communicate each one of his decisions to the Deputy Commissioner who shall cause the electoral roll to be amended in accordance therewith.

(4)

The revising authority shall also intimate to the Deputy Commissioner to correct any clerical or printing errors which the revising authority may himself discover in the roll. The Deputy Commissioner may also at any time before the publication of the final roll under rule 11, himself correct any clerical or printing errors which he may discover in the electoral roll.

11.

Final Publication of electoral roll.

(1)

The Deputy Commissioner shall then cause the roll, so amended, either to be reprinted and republished or if he deems fit shall republish the preliminary roll published under the provisions of sub-rule (1) of rule 6 together with a list of additions and corrections, in the manner provided for the publication of rolls and notices in sub-rule (2) of rule 6.

(2)

A roll re-published under the provisions of sub-rule (1) with or without a list of corrections, as the case may be, shall come into force from the date of such republication and shall continue in force for a period of five years when a fresh roll shall be prepared in accordance with these rules provided that [before]

[Substituted for the words 'the Punjab Government' by Central Government Notification dated 26.7.1978.]

[the Central Government]

[Substituted for the words 'therefore' by Central Government Notification dated 26.7.1978.]

may, by notification, direct the preparation in accordance with these rules of a fresh roll at any time before the expiry of the said period.

(3)

If a constituency is called upon to elect a member or members after an electoral roll has ceased to have force and the completion of the new electoral roll, the old electoral roll shall, for the purpose of that election, continue to operate as the electoral roll for the constituency.

(4)

(a)

Any person whose name is not included in the electoral roll of a constituency may apply in the manner hereinafter provided for the inclusion of his name in that electoral roll.

(b)

Where an application under clause (a) is made at any time after the issue of a notice calling upon the constituency to elect a member or members and before the completion of that election, it shall be made to the Deputy Commissioner of the district in which the constituency is situated, or if the constituency extends over more than one district, to the Deputy Commissioner within whose jurisdiction the applicant resides, and in other cases it shall be made to the returning officer of the constituency.

(c)

The Deputy Commissioner or the returning officer, as the case may be shall, if satisfied after such notice and such enquiry as he thinks fit that the applicant is entitled to be registered in the electoral roll, direct his name to be included therein:

Provided that if the applicant is registered in the electoral roll of any other constituency, the Deputy Commissioner, or

the returning officer, as the case may be, shall inform the returning officer of that constituency, and that officer shall on receipt of the information, strike off the applicant's name from that electoral roll.

(d)

Where an application made under this rule is rejected, an appeal shall lie to the [concerned Commissioner Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

within fifty days from the date of such rejection.

(e)

No application or appeal under this sub-rule shall be entertained unless it is accompanied by a fee of -

(i)

one rupee in the case of application to the returning officer;

(ii)

five rupees in the case of an application to the Deputy Commissioner; and

(iii)

five rupees in the case of an appeal to the [concerned Commissioner Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

.

(f)

The fee prescribed under clause (c) shall in no case be refunded.

(g)

When a direction is issued under sub-rule (4) the electoral roll to which such direction relates, shall be deemed to have been revised accordingly.

12.

Correction of clerical error in rolls. -

Any person whose name is on the roll of a constituency may apply in writing to the returning officer or to the appropriate revising authority for the correction of any error in the entry in the roll relating to his name which is a clerical error or a mistake in the entry of any particular which does not affect his right to be entered in the roll, and the returning officer or revising authority, as the case may be, may at any time make or cause to be made such correction in the roll as he may deem necessary in respect of such entry.

13.

Dates for various stages of election. -

(1)

The [Chief Commissioner, Gurudwara Elections]

[Substituted for the [Commissioner, Gurdwara Elections] by Central Government Notification dated 26.7.1978.]

shall, by notification the Official Gazette [of the State or States concerned]

[Inserted vide MOH Notification No. G.S.R. 376(E), dated 23.8.1996.]

, fix the date or dates on, by or within which -

(i)

the nomination papers shall be presented;

(ii)

the list of nomination papers shall be posted;

(iii)

the nomination papers shall be scrutinised;

(iv)

applications for the revision of the order of the authority scrutinising the nomination papers may be made to the Deputy Commissioner;

(v)

the revision applications shall be decided;

(vi)

a candidate may withdraw his candidature;

(vii)

the list of valid nomination papers shall be posted;

(viii)

the list of polling stations shall be posted;

(ix)

the polling shall be held; and

(x)

the result of election shall be declared :

Provided that the last date for the nomination of candidates for election shall be fixed not less than [twenty days]

[Substituted for [thirty days] by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

before the date fixed for the poll and not less than [seven days]

[Substituted for the words 'fifteen days' by Central Government Notification dated 26.7.1978.]

after the date of the publication of the notice and the date for the scrutiny of nominations shall be fixed not more than seven days from the last date for the nomination of candidates.

(2)

The returning officer shall publish a copy of the notification fixing the dates under sub-rule (1) at his office and the places at which the elector roll is required to be published.

(3)

The Commissioner, Gurdwara Elections, may by notification in the official Gazette, order a change in any of the dates fixed under sub-rule (1) at any time :

Provided that unless the Commissioner, Gurdwara Elections, otherwise directs no such order shall be deemed to invalidate any proceedings taken before the date of the order.

14.

Notification of symbols.

(1)

The [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

shall by notification in the official Gazette, publish a list of symbols and may in like manner add to or vary such list.

(2)

In each constituency every nomination paper delivered under rule 15 shall also be accompanied by a declaration in writing specifying the particular symbol which the candidate has chosen for his first preference out of the list of symbols published under sub-rule (1) and also specifying two other symbols out of that list which he has chosen for his second and third preference, respectively :

Provided that the choice to be made by a candidate under this sub-rule shall be subject to such restrictions as the [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

may think fit to impose in that behalf.

15.

Nomination of candidates.

(1)

Any person not ineligible for membership of the Board under the provisions of section 45 of the Act may be nominated as a candidate for election :

Provided that -

(a)

on or before the date fixed for the nomination of candidates under the provisions of rule 13, between the hours of 11 O'clock in the forenoon and 3 O'clock in the afternoon, he shall deliver, either in person or by his proposer or by an agent appointed by authority in writing, signed by the candidate and verified by a magistrate, sub-registrar, sarpanch, nayaye pradhan, lambardar or member of Legislature or local body to the returning officer or any other officer appointed by him in this behalf a nomination paper completed in form IV and subscribed by the candidate himself as assenting to the nomination and by one person as proposer, whose name is included in the roll of the constituency concerned published under the provisions of rule 11;

(b)

no person shall subscribe as proposer a number of nomination papers greater than the number of members to be elected to represent the constituency in question, and if a person has subscribed a large number of nomination papers than there are vacancies to be filled, only those of the papers so subscribed which have been first received up to the number of such vacancies shall be deemed to be valid.

(2)

In a constituency where there is a [the seat the member of schedule cast]

[Substituted for the words 'reserved seat' by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

, no candidate shall be deemed to be qualified to be chosen to fill that seat unless he furnishes to the returning officer, either at the time of the presentation of the nomination paper or at the time of scrutiny thereof, a declaration verified by the candidate on oath or solemn affirmation before a Magistrate, that the candidate is a member of the Scheduled Castes for which the seat has been so reserved and the declaration specifies the particular caste to which the candidate belongs.

(3)

On the presentation of a nomination paper, the returning officer shall satisfy himself that the names and electoral roll numbers of the candidate and his proposer as entered in the nomination paper are the same as those entered in the electoral rolls:

Provided that the returning officer may -

(a)

permit any clerical error in the nomination paper in regard to the said names or numbers to be corrected in order to bring them in conformity with the corresponding entries in the electoral rolls, and

(b)

where necessary, direct that any clerical or printing error in the said entries shall be overlooked.

16.

Deposits. -

(1)

On or before the date appointed for the nomination of candidates, each candidate shall deposit or cause to be deposited with the returning officer in the treasury or a sub-treasury of Reserve Bank a sum of [one thousand]

[Substituted for [one hundred] by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

rupees and no candidate shall be deemed to be duly nominated unless such deposit has been made :

Provided that not more than one such deposit need be made by any candidate in respect of his candidature for any one constituency :

Provided further that where the candidate is a member of the Scheduled Castes the amount to be deposited by him or on his behalf shall be [five hundred rupees]

[Substituted for [rupees fifty] by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

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(2)

If a candidate by whom or on whose behalf the deposit has been made withdraws his candidature in the manner and within the time specified in the rule 20, except sub-rule (2) thereof, or if the nomination of any such candidate is rejected, the whole deposit shall be returned to the person by whom it was made.

(3)

If a candidate by whom or on whose behalf the deposit has been made withdraws his candidature within the time specified in sub-rule (2) of rule 20, three-quarters of the deposit shall be returned to the person by whom it was made and the remaining one-quarter shall be forfeited to the State Government.

[Explanation. - In this sub-rule and in sub-rules (5) and (6) the expression "State Government" means the Government of the State in which the candidate concerned is registered as voter.]

[Explanation added by Central Government Notification dated 26.7.1978.]

(4)

If a candidate by whom or on whose behalf the deposit has been made dies before the commencement of the poll, the deposit, if made by him, shall be returned in full to his legal representative or, if not made by the candidate, shall be returned in full to the person by whom it was made.

(5)

If a candidate by whom or on whose behalf the deposit referred to in sub-rule (1), has been made is not elected and the number of votes polled by him does not exceed [one sixth of the total number of valid votes polled]

[Substituted for the words 'one-eighth of the total number of votes polled' by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

or, in the case of a constituency returning, more than one member, [one sixth of the total number of valid votes polled]

[Substituted for the words 'one-eighth of the total number of votes polled' by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

divided by the total number of members to be elected in the constituency concerned, the deposit shall be forfeited to the State Government.

Explanation. - For the purpose of this sub-rule the number of votes polled shall be deemed to be the number of ballot-papers, other than rejected ballot papers, counted.

(6)

If a candidate by whom or on whose behalf the deposit, referred to in sub-rule (1), has been made is elected or is not elected, the deposit shall, if it is not forfeited under sub-rule (5), be returned to the candidate or to the person who has made this deposit on his behalf, as the case may be, after the publication of the result of the election in the Official Gazette :

Provided that if a candidate is duly nominated at a general election in more constituencies then one, not more than one of the deposits made by him or on his behalf shall be returned and the remainder shall be forfeited to the State Government.

17.

List of nominations to be posted.

- The returning officer shall, on the date specified under rule 13 in this behalf, post at his office a list of all the candidates, whose nomination papers have been duly presented in accordance with the provisions of rule 15, together with descriptions similar to those contained in the nomination papers of the candidates and of the persons who have subscribed the nomination papers as proposers.

18.

Candidates, etc., to be allowed to examine nomination papers.

- On the date fixed for the scrutiny of nominations under the provisions of rule 13, the candidates, one proposer of each candidate and one agent of such candidate but no other person, may attend at such time and place as the returning officer may appoint, and the returning officer shall give them all reasonable facilities for examining the nomination papers of all candidates whose names are included in the list of candidates posted under the provisions of rule 17.

19.

Scrutiny of nominations and decision of objections.

(1)

On the date fixed for the scrutiny of nominations under the provisions of rule 13, after facilities have been given for the examination of nomination papers under the provisions of rule 18, and if necessary on the next following day, the returning officer or any other officer not below the rank of Extra Assistant Commissioner appointed by the returning officer in this behalf shall examine the nomination papers of all candidates whose names are included in the list of candidates posted under the provisions of rule 17, and shall decide all objections made to any nomination, and may, either on such objections or of his own motion, after such summary enquiry, if any, as he may deem necessary, reject any nomination on any of the following grounds :

(a)

that the candidate is ineligible for election under the provisions of section 45 of the Act;

(b)

that a proposer was not qualified to subscribe the nomination paper under the provisions of rule 15;

(c)

that there has been any failure to comply with any of the provisions of rule 15 or rule 16;

(d)

that the candidate or his proposer is not identical with the person whose number on the roll is given in the nomination paper as the number of such candidate or proposer, as the case may be;

(e)

that the signature of the candidate or his proposer is not genuine or has been obtained by force or fraud :

Provided that -

(i)

nothing contained in clause (a) of this sub-rule shall be deemed to authorize the rejection of the nomination of any candidate on the ground that he is ineligible for election owing to his being a patit;

(ii)

nothing contained in clause (b), (c), (d) or (e) of this sub-rule shall be deemed to authorise the rejection of the nomination of any candidate on the ground of any irregularity in respect of a nomination paper if the candidate has been duly nominated by means of another nomination paper in respect of which no irregularity has been committed.

(2)

If any question arises whether a candidate is or is not able to read and write Gurmukhi, the candidate shall be deemed to fulfil that qualification if he produces a certificate from the headmaster of a Government or a recognised Khalsa School, of not below the middle standard, to the effect that the candidate can recite Shri Guru Granth Sahib in Gurumukhi and can also write Gurumukhi.

(3)

The returning officer or other officer appointed under the provisions of sub-rule (1) for the scrutiny of nomination papers shall endorse on each nomination paper his decision accepting or rejecting it, and if he rejects it, shall record in writing a brief statement of his reasons for so rejecting it.

(4)

Any person aggrieved by any order passed by an authority under sub-rule (1) or sub-rule (3), may, within the date specified under rule 13 in this behalf, present in person or by counsel or by an agent appointed by authority in writing signed by him and verified by a Magistrate, sub-registrar, sarpanch nayaye pardhan, lambardar or a member of Legislature of local authority, to the Deputy Commissioner of the district in which the returning officer is posted an application for revision of such order.

(5)

When any application for revision of an order has been received under sub-rule (4), the Deputy Commissioner, may, after hearing the applicant or his counsel, confirm such order or, after serving the candidates for election from the constituency with a notice, either personally or by registered post or by affixing its copy to those persons' residence or at the address given in their nomination papers, intimating the date on which the application will be heard, and after hearing the applicant and such other candidates as may appear on the date so intimated, may confirm such order or set it aside and pass such other order as he may deem fit. The order so passed under this sub-rule shall be final.

20.

Withdrawal of candidate.

- [(1) Any candidate may withdraw his candidature by notice in Form IV-A subscribed by him and delivered by him in person or by his agent to the Returning Officer before three O'clock in the afternoon on or before the date specified under Rule 13 in this behalf and the Returning Officer shall publish a notice in Form IV-B in respect of such withdrawal and no person who has thus withdrawn his candidature shall be allowed to cancel his withdrawal or to be re-nominated as a candidate for the same election.]

[Substituted by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

(2)

The returning officer may allow withdrawal of candidature not less than ten days previous to the date of the commencement of the poll if -

(a)

in a constituency where there is no reserved seat, the number of remaining candidate is one;

(b)

in a constituency where there is a reserved seat, the number of remaining candidates is one each for the non-reserved and reserved seat :

Provided that withdrawal may also be allowed for the non-reserved or reserved seat alone for which the number of remaining candidate is one.

21.

Assignment of symbols to candidates.

(1)

If in any constituency the number of validly nominated candidate exceeds the number of seats to be filled, the returning officer shall, before preparing a list of valid nominations under rule 22, consider the choice as respects symbols expressed by candidates in the declarations referred to in sub-rule (2) of rule 14 delivered by them along with their nomination papers and shall, subject to any general or special directions issued by the [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

in this behalf, assign a different symbol to each candidate in conformity, as far as practicable, with his choice. If more candidates than one indicate their preference for the same symbol, the returning officer shall decide by lot to which of these candidate the symbol shall be assigned. The decision of the returning officer in assigning any symbol to a candidate under this rule shall be final.

(2)

In every case where a symbol has been assigned to a candidate under sub-rule (1), such candidate or his agent shall forthwith be informed of the symbol so assigned and be supplied with a specimen thereof by the returning officer.

22.

List of all valid nominations to be posted.

(1)

On completion of the scrutiny of nominations and after the expiry of the period within which candidature may be withdrawn under the provisions of sub-rule (1) of rule 20 the returning officer, shall forthwith prepare a list of valid nominations and cause it to be posted up in some conspicuous place in his office and at such other places in the constituency as he may deem fit.

(2)

The list to be posted under sub-rule (1) shall contain the names in alphabetical order in Gurmukhi and address of the validly nominated candidates as given in the nomination papers and indicate the symbol assigned to each candidate. In the case of an election in a constituency where the seats to be filled include a reserved seat, the list shall be divided into two parts, viz., Part 'A' and 'B'. Part 'A' shall contain the names of validly nominated candidates for the non-reserved seat and Part 'B' the names of validly nominated candidates for the reserved seat and in both cases the names shall be arranged in alphabetical order separately.

(3)

If there are two candidates whose names are the same, they shall be distinguished by the addition of their occupation or their village or in such other manner as the returning officer may think fit.

23.

Death of candidate before poll.

- If a candidate dies before the poll and after the date fixed for the nomination of candidates and his nomination is or has been accepted as valid at the time of scrutiny of nomination papers, all proceedings with reference to the election of a member in the constituency or constituencies in which he was candidate shall be commenced anew in all respects as if for a fresh election:

Provided that no fresh nomination shall be necessary in the case of a candidate whose name is entered on a list of valid nominations posted under the provisions of rule 22.

24.

Procedure in uncontested election.

(1)

The returning officer shall subject to the provisions of rule 23, deem and declare the validly nominated candidate(s) elected if -

(a)

in a constituency where there is no reserved seat, there is only one validly nominated candidate;

(b)

in a constituency, where there is a reserved seat, there is only one candidate for each of the non-reserved and reserved seat :

Provided that where there is only one validly nominated candidate for the non-reserved or reserved seat, the candidate for that seat alone shall be deemed and declared to be elected.

(2)

[The returning officer shall forward the names of the elected candidate (s) to the Chief Commissioner, Gurudwara Elections and, except where a constituency extends over more than one State, also to the concerned Commissioner, Gurudwara Elections.]

[Sub-rule (2) substituted by Central Government Notification dated 26.7.1978.]

(3)

If there is no validly nominated candidate for the non-reserved seat or reserved seat or both, the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurdwara Elections' by Central Government Notification dated 26.7.1978.]

shall fix another date for election to the respective category of seats.

25.

Procedure in contested election.

- If the number of candidates validly nominated in any constituency is more than one, a poll shall be taken on the date or dates specified under rule 13 in this behalf for the election.

Provided that in a constituency having reserved seat poll shall be taken for the non-reserved seat or reserved seat, as the case may be, for which the number of validly nominated candidates exceeds one.

[25-A Appointment of election agents. - (1) A contesting candidate may appoint in Form IV-C any person to be his election agent and notice of such appointment shall be given by forwarding the same in duplicate to the Returning Officer who shall return one copy thereof to the election agent after affixing thereon his seal and signature in token of his approval of the appointment.

(2)

The revocation of the appointment of the election agent under rule sub-rule (1) shall be made in Form IV-D and shall be lodged with the Presiding Officer and the Returning Officer and in the case of any such revocation the candidate may make fresh appointment in his place.

25.

-B Appointment of polling agent.

(1)

A contesting candidate may appoint in Form IV-E any person to be his polling agent and the same shall be handed over to the polling agent for production at the polling station.

(2)

No polling agent shall be admitted in the polling station unless he has delivered to the Presiding Officer the instrument of his appointment made under sub-rule (1) after duly signing before the Presiding Officer the declaration contained therein.

(3)

The revocation of the appointment of a polling agent made under sub-rule (1) shall be made in Form IV-F and shall be lodged with the Presiding Officer and in the event of any such revocation the candidate may make fresh appointment in his place.]

[Rule 25-A and 25-B added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

26.

List of polling stations to be published and polling officers to be appointed.

(1)

The returning officer shall select such number of polling stations as he may deem necessary and shall, not less than seven days before the first date of the dates fixed for the election, publish in the manner prescribed for the publication of rolls and notices in sub-rule (2) of rule 6 a list showing the polling stations so selected, the polling area for which each such station has been selected and the hours during which each such station shall remain open for the recording of votes, and no person shall be permitted to record his vote except at the polling station of the area to which according to the roll he belongs and during the hours specified in the list.

(2)

The returning officer shall appoint a presiding officer for each polling station and such other persons (hereinafter referred to as polling officers) to assist the presiding officer as he may deem necessary but he shall not appoint any person who has been employed by or on behalf of or has been otherwise working for, a candidate in or about the election. If the

presiding officer, owing to illness or other unavoidable cause, absents himself from the polling station, his functions shall be performed by such polling officer as has been previously authorized by the returning officer to perform such functions during any such absence, and if a polling officer is absent from the polling station, the presiding officer may subject to the restriction imposed above, appoint any person who is present at the polling station to be the polling officer and inform the returning officer accordingly.

The returning officer may at any time, if he thinks fit, appoint any other person to act in place of any person previously appointed.

(3)

The presiding officer shall, in addition to performing any other duties imposed upon by these rules, be in general charge of all arrangements at the polling station and may issue orders as to the manner in which persons shall be admitted to the polling station and generally for the preservation of peace and order at or in the vicinity of the polling station.

27.

Materials to be supplied at polling stations.

- The [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

may direct that before any ballot-paper is delivered to a voter at a polling station, it shall be marked with such official mark as may be specified by him in this behalf, and the official mark so specified shall be kept secret.

(2)

The returning officer shall provide at each polling station as many ballot-boxes and ballot-papers as may be necessary, instrument for stamping the official mark on the ballot-papers when any direction in this behalf has been issued by the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

copies of the roll or such part thereof as contain the name of the elector entitled to vote at such station and materials sufficient for the purpose of enabling electors to mark the ballot-papers.

28.

Arrangement for secrecy of voting.

- Each polling station shall be furnished with such number of polling compartments, in which electors can record their votes screened from observation, as the presiding officer thinks necessary.

29.

Ballot-box.

(1)

Every ballot-box shall be of such design as may be approved by the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

and shall be so constructed that ballot-papers can be inserted there into during the polling but cannot be withdrawn therefrom without the box being unlocked and the seals being broken.

(2)

One ballot-box shall, at a time, be used in a polling station and the same shall be placed for the receipt of the ballot-papers in the view of the presiding officer, candidates and their agents.

30.

Notices to be exhibited.

- Outside each polling station and each polling compartment there shall be displayed prominently -

(i)

a notice specifying the polling area the electors of which are entitled to vote at the polling station;

(ii)

a list of the validly nominated candidates; and

(iii)

instructions for marking the votes on the ballot-papers.

31.

Procedure before commencement of poll.

(1)

The presiding officer shall, immediately before the commencement of the poll, allow inspection of each ballot-box to be

used at the poll to the candidates, their election agent and their polling agents who may be present at the polling station and demonstrate to them that it is empty.

(2)

Where it is necessary to use a paper seal for securing the ballot-box, the presiding officer shall thereafter fix, in the space meant therefor in each such box, a paper seal provided for the purpose.

(3)

He shall also affix on such paper seal his own signature and signatures or seals of the candidates or of their election or polling agents as may be present and who desire to affix such signatures or seals and shall then secure and seal each box in their presence in such a manner that the slit in the box for the insertion of the ballot-papers remains open.

(4)

Where it is not necessary to use a paper seal for securing a ballot-box, the presiding officer shall after demonstration under sub-rule (1) that the ballot-box is empty, secure and seal the box in such a manner that the slit in the box for insertion of ballot papers therein remains open and shall also allow the candidates or their elections or polling agents, who may be present, to affix their own seals on the box, if they so desire.

(5)

The paper seal or other seals used in a ballot-box shall be affixed in such a manner that it shall not be possible to open the box without the breaking such paper seal or other seals or any thread on which such seals have been affixed.

32.

Admission to polling station.

- The presiding officer shall regulate the number of electors to be admitted at any one time inside the place fixed for the poll and shall exclude therefrom all other persons except -

(a)

the polling officer;

(b)

every candidate, his election agent and one polling agent for each candidate;

(c)

persons authorised by the [Chief Commissioner Gurdwara Elections]

[Inserted vide MOH Notification No. G.S.R. 302(E), dated 30.3.1995.]

Commissioner, Gurdwara Elections and the returning officer;

(d)

public servants on duty [in connection with elections]

[Added vide MOH Notification No. G.S.R. 302(E), dated 30.3.1995.]

;

(e)

a child in arms accompanying an elector;

(f)

a person accompanying a blind or infirm elector who cannot move without help; and

(g)

such other persons as the presiding officer may from time to time admit for the purpose of assisting him in taking the poll.

[33. Form of ballot papers. - (1) Every ballot paper shall have a counterfoil attached thereto and the ballot paper and counterfoil shall be in such form and the particulars therein shall be in such language or languages as the Chief Commissioner Gurdwara Elections may direct.

(2)

The names of the candidates shall be arranged on the ballot paper in the same order in which they appear in the list of validly nominated candidates prepared under Rule 22.

(3)

If two or more candidates bear the same name, they shall be distinguished by the addition of their occupation or residence or in any other manner as may be directed by the Chief Commissioner Gurdwara Elections.]

[Substituted by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

34.

Voting to be in person and not by proxy.

- The voting shall be by ballot and every elector wishing to record his vote shall do so in person and not by proxy.

35.

Question to be put to electors.

- At any time before a ballot-paper is delivered to an elector, the presiding officer or a polling officer may of his own accord if he has reason to doubt the identity of the elector or his right to vote at the polling station, and shall, if so required by a candidate or his agent, put to the elector the following questions :

(a)

any you the person enrolled as follows :-

(Reading the whole entry relating to the elector from the roll

(b)

have you already voted at the present election ?

(c)

such other question as he may deem fit or necessary :

and the elector shall not be supplied with a ballot-paper unless he answers the first question in the affirmative and the second question in the negative or if he refuses to answer any other question put to him in pursuance of this rule.

36.

Special procedure for preventing personation of electors.

(1)

Subject to the other provisions of this rule, every elector who applies for a ballot-paper or ballot-papers for the purpose of voting at a polling station shall, before receiving such ballot-paper or papers, allow -

(a)

the inspection of his left forefinger to the presiding officer or any polling officer; and

(b)

an indelible ink mark to be put on his left forefinger.

(2)

If any such elector -

(a)

refuses to allow such inspection of his left forefinger, or

(b)

persists in doing any act with a view to remove such mark after it has been put, he shall not be entitled to be supplied with any ballot-paper or to record his vote at the election.

(3)

No person who already has a mark on his left forefinger at the time he enters the polling station shall be supplied any ballot-paper, and if any such person applies for a ballot-paper or ballot-papers, he shall be liable to be arrested and 'prosecuted for personation.'

(4)

Any reference in this rule or in rule 37 to the left forefinger of an elector shall, in the case where the elector has his left forefinger missing, be construed as a reference to any other finger of his left hand, and shall, in the case where all the fingers of his left hand are missing, be construed as a reference to the forefinger or any other finger of his right hand, and shall, in the case where all this fingers of both the hands are missing, be constructed as a reference to such extremity of his left or right arm as he possesses.

37.

Procedure for recording of votes.

(1)

The elector on entering the polling station shall first allow his left forefinger to be inspected by a polling officer for the purpose of ascertaining if he already has any mark of indelible ink on that finger. If there is no such mark, the polling officer-in-charge of the electoral roll shall ascertain the elector's name and address and such other particulars as appear on the roll and, after having checked these by reference to the roll, shall call out the number, name and description of the elector according to the entry in the roll.

(2)

[On the elector's name being called out, the elector shall approach the Polling Officer-in-charge of the ballot papers who shall then cause the left fore-finger of the elector to be marked with indelible ink and shall thereafter deliver a ballot paper or the requisite number of ballot papers to the elector :

Provided that before delivering the ballot paper or papers the Polling Officer-in-charge, where a direction has been issued in this behalf under sub-rule (1) of Rule 27, stamp the ballot paper or papers, as the case may be, with such official mark as may have been specified under that rule.

(3)

At the time of issuing a ballot paper or papers to an elector the Polling Officer-in-charge shall -

(a)

record on its counterfoil the electoral roll number of the elector as entered in the marked copy of the electoral roll;

(b)

obtain the signature or thumb impression of the elector on the said counterfoil; and

(c)

mark the name of the elector in the marked copy of the electoral roll to indicate that a ballot paper has been issued to him, without further recording therein the serial number of the ballot paper issued to that elector :

Provided that no ballot paper shall be delivered to an elector unless he has put his signature or thumb impression on the counterfoil of the ballot paper.

(4)

Notwithstanding anything contained in sub-rule (3) it would not be necessary for the Presiding Officer or the Polling Officer or any other officer to attest the signature or the thumb impression, as the case may be, of the elector on the counterfoil.

(5)

No person in the Polling Station shall note down the serial number of the ballot paper or papers issued to particular electors.]

[Sub-rule (2) substituted and sub-rule (3) to (5) added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

(6)

□

[Sub-rule (3) re-numbered as (6) by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

In deciding the right of a person to obtain a ballot-paper under this rule, the presiding officer at any polling station may interpret an entry in the electoral roll so as to overlook merely clerical or printing error if he is satisfied that such person is identical with the elector to whom such entry relates.

38.

Identification of elector.

- The Presiding Officer may employ at the polling station such person as he thinks fit to assist him any polling officer in identifying the electors.

39.

Manner of recording votes.

(1)

The elector on receiving a ballot-paper shall forthwith proceed to one of the polling compartments and there make a mark on the ballot-paper against the name of the candidate for whom he intends to vote in accordance with such instructions as the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.] may issue in this behalf.

(2)

In a constituency where there is a reserved seat, every elector shall be issued two ballot-papers - one (white) for the non-reserved seat and other (coloured) for the reserved seat and he shall mark each ballot-paper in the manner indicated in sub-rule (1).

(3)

The elector shall then, before quitting the polling compartment, fold his ballot-paper so as to conceal his vote, and after showing to the presiding officer the distinguishing mark, if any, on the ballot-paper, put the ballot-paper so folded into the

ballot-box in the presence of the presiding officer.

(4)

The polling officer shall, when he is so requested by an elector, explain to him instructions for the recording of votes.

(5)

Every elector shall vote without undue delay and shall quit the polling station as soon as he has put his ballot-paper in the ballot-box. No elector shall remain in a polling compartment longer than is reasonably necessary for marking his vote.

(6)

No elector shall be allowed to enter a polling compartment when another elector is inside.

40.

Recording of votes of infirm electors.

(1)

If owing to blindness or other physical infirmity, an elector is unable to read the ballot-paper or make a mark thereon, the presiding officer shall record the vote on the ballot-paper in accordance with the wishes of the elector and fold it up so as to conceal the vote.

(2)

The elector shall then himself or with the assistance of the polling officer insert the ballot-paper into the ballot-box.

(3)

While acting under this rule the polling officer shall observe as much secrecy as feasible and shall keep a brief record of each such instance but shall not indicate therein the manner in which any vote has been given.

41.

Tendered votes.

(1)

If a person representing himself to be a particular elector named on the electoral roll applies for a ballot-paper after another person has already voted as such elector, he shall, after duly answering such questions as the polling officer may ask, be supplied with a ballot-paper in form V (hereinafter in the rules referred to as a tendered ballot-paper).

(2)

Every such person shall, before being supplied with a tendered ballot-paper, sign his name against the entry relating to him in a list in form VI.

(3)

Such person shall thereafter record on the ballot-paper the name or names of the candidate or candidates for whom he wishes to vote; but if owing to illiteracy or any other reason he is unable to make such record the presiding officer shall do so in accordance with his wishes.

(4)

The procedure laid down in sub-rule (3) shall be followed with due regard to secrecy.

(5)

Every such tendered ballot-paper shall forthwith be placed in a separate cover which shall be sealed and all such covers containing tendered ballot-papers shall be kept in a separate packet.

42.

Challenged votes.

(1)

If any candidate or his agent declares and undertakes to prove that any person by applying for a ballot-paper has committed the offence of personation, the polling officer may require such person to state his name and address and shall then enter such name and address in the list of challenged votes in form VII and shall require such person to sign such entry or, if he is unable to write to affix his thumb impression thereto and the polling officer shall sign his name across such impression and may further require such person to produce evidence of identification :

Provided that no action shall be taken by the polling officer under this sub-rule unless a sum of two rupees has been deposited in cash with the polling officer by the candidate or his agent for each challenge he makes.

(2)

If the person so challenged refuses to comply with such requisition he shall not be permitted to vote. But if such person does so comply and on being questioned in the manner provided in rule 35 answer the first question in the affirmative

and the second question in the negative and replies, satisfactorily to any other question put to him in pursuance of that rule, and if having been required to produce evidence of identification he produces evidence, which the polling officer considers satisfactory, he shall be allowed to vote after he has been informed of the penalty for personation.

(3)

If the polling officer after such inquiry on the spot as he thinks necessary is of opinion that the challenge made by the candidate or his agent under sub-rule (1) is frivolous and has not been made in a good faith; he shall direct the deposit made under sub-rule (1) to be forfeited to [the Government of the State in which the polling stations is situate]

[Substituted for the word "Government" by Central Government Notification dated 26.7.1978.]

and his order in this respect shall be final.

(4)

If the deposit made under sub-rule (1) is not forfeited under sub-rule (3), it shall be returned forthwith to the person by whom it was made.

(5)

The polling officer shall in every case, whether or not the person challenged is allowed to vote, make a note of the circumstances in the list of challenged votes.

43.

Spoilt ballot papers.

- A voter who has inadvertently dealt with his ballot-paper in such a manner that it cannot conveniently be used as a ballot-paper may, after delivering such ballot paper to the polling officer and satisfying him of such inadvertence, obtain another ballot-paper in place of the spoilt paper, and the latter shall be [marked as spoilt : canceled]

[Substituted for the words 'marked as cancelled' by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

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44.

Recording of votes by staff on duty at polling station at which they are not entitled to vote.

(1)

A presiding officer, a polling officer, any other public servant or a polling agent, who is an elector in a constituency and is, by reason of his being on duty at a polling station, unable to vote at the polling station where he is entitled to do so may, on application, be allowed to record his vote in that constituency by means of the ballot-paper(s) prescribed for the constituency concerned, to be returned to the returning officer of that constituency by post so as to reach him before the date fixed for the declaration of result under rule 13.

(2)

Every such application shall be addressed to the returning officer of the constituency, shall specify the name of the elector, his address and his electoral roll number and shall be made at least ten days before the date fixed for the poll.

(3)

If the returning officer is satisfied that the applicant is entitled to vote under sub-rule (1), he shall make arrangements for the supply to him of the ballot-paper(s) by adding the word "postal" thereon.

45.

Return of ballot-paper by elector.

- If an elector after obtaining any ballot-paper for the purpose of recording his vote decides not to use the same, he shall return the ballot-paper to the presiding officer and the ballot-paper so returned shall then be marked as "cancelled - returned" and kept in separate envelope set apart for the purpose and a record shall be kept by the polling officer of all such ballot-papers.

46.

Closing of polling station.

- These polling officer shall close the polling station each day at the hour appointed under the provisions of sub-rule (1) of rule 276 and no ballot-paper shall be issued to any elector after such hour, but all electors present at the place fixed for the poll before it is so closed shall be entitled to have their votes recorded :

Provided that if for any reason it was not possible to open the polling station at the hour appointed under the provisions of sub-rule (1) of rule 26, or if by reason of disorder at the polling station, or for any other reason the polling was stopped for a certain time, the presiding officer shall keep the polling station open for a further period equal to the period that elapsed between the hour appointed for the opening of the polling station and the hour at which it was actually opened

or the time during which polling was stopped as the case may be.

47.

Procedure at close of poll.

(1)

The polling officer of each polling station shall, as soon as practicable after the close of the polling in the presence of the candidates or their agents who may be present, prepare an account of ballot-papers in form VIII.

(2)

He shall also make up into separate packets -

(i)

the unused ballot-papers;

(ii)

the tendered ballot-papers;

(iii)

the cancelled ballot-papers (returned as well as spoilt);

(iv)

the marked copy of the electoral roll;

(v)

the tendered votes list;

(vi)

the list of challenged votes;

(vii)

any other paper directed by the returning officer to be kept in a sealed packet; and shall seal each such packet with his own seal and the seals of such candidates or election or polling agents as may desire to affix their seals thereon.

(3)

He shall forward the account of ballot-papers referred to in sub-rule (1) and the packets referred to in sub-rule (2) to the returning officer, along with the packets referred to in rule 51.

48.

Fresh poll in case of destruction of ballot-boxes.

(1)

If at any election any ballot-box or boxes is or are unlawfully taken out of the custody of the presiding officer or is or are in any way tampered with, or is or are either accidentally or intentionally destroyed or lost the election to which such ballot-box or boxes relate shall be liable to be declared as void, but only in respect of the polling station or stations provided for the poll, as the case may be, at which such ballot-box or boxes was or were used and no further.

(2)

Whenever the polling at any polling station or stations or at the place fixed for the poll shall be liable to be declared as void under sub-rule (1), the presiding officer shall, as soon as practicable after the act or event causing such voidance has come to his knowledge, report the matter to the returning officer, Deputy Commissioner, [concerned Commissioner, Gurudwara Elections and the Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'and the Commissioner, Gurdwara Elections' by Central Government Notification dated 26.7.1978.]

. The Deputy Commissioner shall, in the event of his being satisfied, declare the election void and the returning officer shall with the approval of the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurdwara Elections' by Central Government Notification dated 26.7.1978.]

appoint a day for the taking of a fresh poll in such or every such polling station or in such place fixed for the poll and fix the hours during which the poll will be taken :

Provided that no fresh poll shall be taken if the difference between the votes secured by the two candidates who have obtained largest numbers of votes is more than the total number of votes entitled to vote at such a polling station or polling stations in the constituency.

(3)

The provisions of these rules shall apply to every such fresh poll as they apply to the original poll.

49.

Adjournment of polling in emergencies.

(1)

If at an election the proceedings at any polling station provided under rule 26 are interrupted or obstructed by any riot or open violence, or if at an election it is not possible to take the poll at any polling station on account of any natural calamity, or any other sufficient cause, the presiding officer shall announce an adjournment of the poll to a date to be specified later, and shall forthwith inform the returning officer.

(2)

Whenever a poll is adjourned under sub-rule (1), the returning officer shall immediately report the circumstances [to the concerned Commissioner, Gurudwara Elections, and the Chief Commissioner, Gurudwara Elections, and shall as soon as may be, with the approval of the Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'to the Commissioner, Gurudwara Elections, and shall as soon as may be with the approval of the Commissioner Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

appoint the day on which the poll shall recommence and fix the hours during which the poll will be taken and the votes cast at that polling station shall not be counted until such adjourned poll shall have been completed :

Provided that no adjourned poll shall be taken if the difference between the votes secured by the two candidates who have obtained the largest number of votes is more than the total number of votes entitled to vote at such a polling station.

[50. Programme for counting of votes. - (1) The Chief Commissioner Gurudwara Elections may direct as to whether the counting of votes is to be done at the polling station itself after the close of the poll or at a different date, time and place.

(2)

The Returning Officer will appoint constituency-wise number of persons as he may deem necessary to be known as Counting Supervisors and Counting Assistants to assist him in counting of votes.

(3)

Where the counting is to be done at a place other than the polling station the Presiding Officer will seal the ballot boxes and election papers in accordance with the provisions of these rules and as per further directions of the Chief Commissioner Gurudwara Elections and deposit the same at the place fixed for this purpose by the Returning Officer for safe custody.

(4)

Where the counting is to be done by the Returning Officer, reference to the Presiding Officer in Rules 50, 51 and 52 shall be construed as a reference to the Returning Officer.

50.

-A Intimation of time and place for counting of votes.

- Where the counting of votes is to be done by the Returning Officer, he shall, at least seven days before the date or the first of the dates, fixed for poll, appoint the place or places where counting of votes will be done and the date and time at which counting will be done and shall give notice of the same in writing to each candidate or his election agent :

Provided that if for any reason the Returning Officer finds it necessary and expedient to do so, he may alter the date, time and place so fixed and inform by giving notice of the same to each candidate or his election agent.

50.

-B Appointment of counting agents and revocation of such appointment.

(1)

Each contesting candidate shall, subject to such general or special direction as the Commissioner Gurudwara Election may issue in this behalf, appoint one Counting Agent, for each polling station, one Counting Agent for the table of the Returning Officer if counting is to take place at a different place from the polling station and one counting agent for each of the table on which counting of votes is to be done.

(2)

Every such appointment shall be made in Form VIII-A in duplicate, one copy of which shall be forwarded to the Returning Officer and the second shall be made over to the Counting Agent for production at the place of counting.

(3)

No Counting Agent shall be admitted into the place fixed for counting unless he has delivered to the returning Officer or the Presiding Officer, as the case may be his copy of appointment letter after duly completing and signing the declaration contained therein and receiving from the Returning Officer or the Presiding Officer an authority for entry into

the place fixed for counting.

(4)

The appointment of a Counting Agent can be revoked in Form VIII-B and lodged with the returning Officer or the Presiding Officer, as the case may be, and in the event of any such revocation, the candidate may make a fresh appointment in his place.

50.

-C Admission to the place fixed for counting.

(1)

The Returning Officer or the Presiding Officer, as the case may be, shall exclude from the place fixed for counting of votes all persons except, -

(a)

such persons (to be known as Counting Supervisors and Counting Assistants) as he may appoint to assist him in counting;

(b)

persons authorised by the Chief Commissioner, Gurudwara Elections or the Commissioner, Gurudwara elections;

(c)

public servants on duty in connection with elections; and

(d)

candidates, their election agents and counting agents.

(2)

No person who has been employed by or on behalf of, or has been otherwise working for a candidate in or about the election, shall be appointed under clause (a) of sub-rule (1).

(3)

The Returning Officer or the Presiding Officer, as the case may be, shall decide which counting agent or agents shall watch the counting at any particular counting table or group of counting tables.

(4)

Any person who during the counting of votes misconducts himself or fails to obey the lawful directions of the Returning Officer or the Presiding Officer, may be removed from the place where the votes are being counted by the Returning Officer or by any Police Officer on duty or by any person authorised in this behalf by the Returning Officer.]

[Rule 50 to 50-C added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[50-D.]

[Rule 50 re-numbered as 50-D by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[Counting of votes.]

[Substituted by Notification No. G.S.R.278(E) dated 4.4.2002.]

- Immediately after the formalities referred to in sub-rules (1) and (2) of rule 47 are completed, the presiding officer shall proceed with the counting of votes as follows:-

(a)

He shall allow the candidates and their agents, who may be present, to inspect all seals on the ballot-box or ballot-boxes used at the polling station and satisfy them that they are in order.

(b)

He shall satisfy himself that none of the ballot-boxes has been tampered with.

(c)

If the polling officer is satisfied that any ballot-box has been tampered with, he shall not count the ballot-papers contained in any ballot-box used at the polling station and shall follow the procedure laid down in rule 48.

(d)

If the polling officer is satisfied that all the ballot-boxes used at the polling station are intact and have not been tampered with, he shall open them and take out the ballot-papers contained therein and allow the candidates and their agents, who may be present, to inspect the boxes and satisfy them that they are empty.

51.

Scrutiny and rejection of ballot-papers.

(1)

The ballot-papers so taken out shall be arranged in convenient bundles and scrutinised. In case where in an election two kinds of ballot-papers have been issued as prescribed in sub-rule (2) of rule 39, they shall be dealt with under this sub-rule separately and procedure laid down in the following sub-rules followed in each case.

(2)

The presiding officer shall reject a ballot-paper :-

(a)

if it bears any mark or writing by which the elector can be identified; or

(b)

if it is a spurious ballot-paper; or

(c)

if it has been so damaged or mutilated that its identity as a genuine ballot-paper cannot be established; or

(d)

if it bears a serial number, or is of a design, different from the serial number, or the design, as the case may be, of the ballot-papers authorised for use at the particular polling station; or

(e)

if it does not bear any mark which it should have borne under the provisions of rule 27; or

(f)

if votes are given on it in favour of more than one candidate; or

(g)

if no vote is recorded thereon; or

(h)

if the mark indicating the vote is placed on the ballot-papers in such a manner as to make it doubtful to which candidate the vote has been given.

(3)

Before rejecting any ballot-paper under sub-rule (2), the presiding officer shall allow each candidate, his election agent and one of the other agents, who may be present, reasonable opportunity to inspect the ballot-paper, but shall not allow them to handle it or any other ballot-paper.

(4)

The presiding officer shall endorse the letter 'R' on every ballot-paper which he rejects and shall keep a brief record in form IX of every case of rejection.

(5)

All ballot-papers used at the polling station which are rejected under this rule shall be kept in a separate packet.

52.

Counting of valid votes.

(1)

Every ballot-paper which is not rejected under rule 51, shall be deemed to be valid and the votes recorded thereon shall be counted.

(2)

The presiding officer shall prepare a result sheet in form X in respect of all ballot-papers taken out of the ballot-boxes :

Provided that in a constituency having a reserved seat separate result sheets shall be maintained for the non-reserved seat and the reserved seat.

(3)

After the counting of votes recorded on the ballot-papers contained in the ballot-boxes used at the polling station has been completed and the entry in respect thereof made in form X, the presiding officer shall announce the particulars in such entry.

(4)

After such announcement has been made, a candidate or, in his absence, his election or counting agent may apply in writing to the presiding officer for a recount of all or any of the ballot-papers already counted stating the grounds on which he demands such recount.

(5)

On such an application being made, the presiding officer shall decide the matter and may allow the application in whole

or in part or may reject it in toto if it appears to him to be frivolous or unreasonable.

(6)

Every decision of the presiding officer under sub-rule (5) shall be in writing and contain the reasons thereof.

(7)

If the presiding officer decides under sub-rule (5) to allow an application either in whole or in part, he shall -

(a)

count the ballot-papers again in accordance with his decision;

(b)

amend the result sheet to the extent necessary after such recount; and

(c)

announce the amendments so made by him.

(8)

After the particulars of entry have been announced under sub-rule (3) or, in case of recount, under sub-rule (5), the presiding officer shall sign the result sheet and no application for a recount shall be entertained thereafter.

(9)

After the result sheet has been signed by presiding officer, the ballot-papers shall be kept in a separate packet which shall be sealed and on which shall be recorded the following particulars, namely :-

(a)

the name of the constituency;

(b)

the particulars of the polling station where the ballot-box(es) was/were used;

(c)

the names of the candidates; and

(d)

the date of the poll.

(10)

Each packet of rejected ballot-papers referred to in sub-rule (5) of rule 15 shall be sealed and the particulars specified in sub-rule (9) shall be recorded thereon.

53.

Declaration of elected candidates and procedure in case of equality of votes.

(1)

The presiding officer shall forward the packets containing the valid and rejected ballot-papers and the account of votes cast in favour of each candidate in form X referred to in rule 52 to the returning officer immediately:

[Provided that, where any part or parts of a constituency have become inaccessible due to climatic conditions or otherwise the Presiding Officer shall, by the speediest means available, communicate to the Returning Officer, the result of the counting indicating the total number of votes polled at the polling station, number of votes rejected and the number of valid votes secured by each candidate.]

[Proviso added by Gazette of India Part III Section 3(1) dt. 2nd March, 1979 Page 338.]

(2)

On the date fixed for the declaration of result, the returning officer shall open the covers containing the ballot-papers returned to him under rule 44, take out the ballot-paper(s) from each such cover and shall scrutinize the same in the manner laid down in rule 51. The ballot-papers rejected by the returning officer shall be kept by him in a separate packet.

(3)

The returning officer shall then count the votes recorded on the ballot-papers not rejected by him under sub-rule (2) and shall prepare a result sheet in form X.

(4)

After the counting of votes recorded on the ballot-papers have been completed and the entry in respect thereof made in form X, the returning officer shall announce the particulars in such entry.

(5)

After all the valid votes recorded on the ballot-papers have been counted, they shall be kept in a separate packet which

shall be sealed and on which shall be recorded the following particulars, namely :-

(a)

the name of the constituency;

(b)

the names of the candidates; and

(c)

the date of counting.

(6)

The packet of rejected ballot-papers referred to in sub-rule (2) shall be sealed and the particulars specified in sub-rule (5) shall be recorded thereon.

(7)

The returning officer shall then consolidate the result in from XI from the result sheets [as also the information under proviso to sub-rule 1]

[Gazette of India Part II section 3(1) dated 2nd March, 1979 Page 338.]

received by him from all the presiding officers in the constituency and the result sheet prepared by him under sub-rule (3) and shall declare it in the following manner :-

(a)

The candidate who is found to have obtained the largest numbers of valid votes shall be declared to have been elected :
Provided that the result for non-reserved and reserved seats shall be prepared and announced separately.

(b)

if, after the counting of votes, tie is found to exist between any candidates, and the addition of one will entitle any of those candidates to be declared elected, that shall forthwith be decided between those candidates by lot, and the candidate on whom the lot falls shall be considered to have received an additional vote and shall be declared to be duly elected.

54.

Return of result of election and publication of names of elected persons in Gazette.

(1)

When the counting of votes has been concluded and the result has been declared, the returning officer shall prepare and [forward to the Chief Commissioner, Gurdwara Elections]

[Substituted for the [forward to the State Government and to the Commissioner, Gurdwara Elections] by Central Government Notification dated 26.7.1978.]

a return showing the names of the candidates, the number of valid votes recorded for each and the name and address of the elected candidate and shall post a copy of the return in a conspicuous place at his office :

Provided that in a constituency where there is a reserved seat, two separate returns; i.e., one for the candidates for the non-reserved seat and another for the reserved seat shall be prepared, forwarded and posted.

[Provided further that, except where a constituency extends over more than one State, the returning officer shall forward the return or returns, as the case may be, to the concerned Commissioner, Gurdwara Elections also.]

[Proviso added by Central Government Notification dated 26.7.1978.]

(2)

After such returns have been received from all the returning officers, the [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

shall publish the names of the persons so elected in the Official Gazette [of the State or States concerned]

[Inserted vide MOH Notification No. G.S.R. 376(E), dated 23.8.1996.]

.

55.

Procedure when a candidate is elected by more than one constituency.

(1)

If any person is elected by more than one constituency, he shall, by notice in writing signed by him and delivered to the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurdwara Elections' by Central Government Notification dated 26.7.1978.]

within seven days from the date of the publication of the result of such election in the Official Gazette, choose for which

of these constituencies he shall serve.

(2)

If the candidate does not make the choice referred to in sub-rule (1) of this rule within the prescribed time, the [Chief Commissioner, Gurudwara Elections]

[The words 'State Government' substituted by Central Government Notification dated 26.7.1978.]

shall, within fourteen days from the date of the publication of the result of such election, declare for which constituency he shall serve. The choice under sub-rule (1) or declaration, as the case may be, shall be conclusive.

(3)

When any such choice or declaration has been made, the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

shall call upon the constituency or constituencies for which such person has not chosen or been declared so serve, to elect another person or persons.

56.

Custody, production and inspection of election papers.

(1)

The returning officer shall seal up the parcels of issued and unissued ballot-papers and such parcels together with all other parcels received from the polling stations shall remain in his custody until the expiry of one year from the date of the election when they shall be destroyed subject to any direction to the contrary made by [the Chief Commissioner, Gurudwara Elections, and where there is no Chief Commissioner, Gurudwara Elections, the Central Government]

[Substituted for the words 'the State Government' by Central Government Notification dated 26.7.1978.]

or by a competent court or by Tribunal appointed to hold an enquiry into an election.

(2)

While in the custody of the returning officer, the packet of ballot-papers, whether valid, rejected or tendered and of the marked copy of the electoral roll shall not be opened and their contents shall not be inspected by, or produced before, any person or authority except under the order of a competent court or of a Tribunal. All other papers relating to the election shall be open to public inspection subject to such conditions and to the payment of such fee, if any, as the [the Chief Commissioner, Gurudwara Elections, and where there is no Chief Commissioner, Gurudwara Elections, the Central Government]

[Substituted for the words 'the State Government' by Central Government Notification dated 26.7.1978.]

may direct.

(3)

Copies of returns forwarded by the returning officers under rule 54 shall be furnished by the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

on payment of fee of two rupees for each such copy.

57.

Procedure for filling vacancy.

- When a vacancy occurs among the elected members of the Board by the death, resignation or removal of any member and a new member has to be elected in his place in accordance with the provisions of section 53 of the Act, such election shall be conducted in the manner prescribed in these rules for a general election and the programme of the election shall be framed as soon as may be convenient after the occurrence of the vacancy and the electoral roll in force under the provisions of rule 11 shall be deemed to be the electoral roll for the purpose of holding the election.

58.

Final authority for interpretation of these rules.

- If any question arises regarding the interpretation of these rules otherwise than in connection with an election petition which has actually been presented, the question shall be referred to the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

who may decide it himself, or if he thinks fit, may refer it to [the Central Government]

[Substituted for the words 'the State Government' by Central Government Notification dated 26.7.1978.]

. The decision of the [Chief Commissioner, Gurudwara Elections]

[Substituted for the words 'Commissioner, Gurudwara Elections' by Central Government Notification dated 26.7.1978.]

or the [the Central Government]

[Substituted for the words 'the State Government' by Central Government Notification dated 26.7.1978.]

as the case may be, shall be final.

59.

Repeal.

- The Sikh Gurdwaras Board Election Rules, 1954 are hereby repealed;

Provided that any order made, notification issued or anything done or any action taken under any of the said rules shall be deemed to have been made, issued, done or taken under the corresponding provisions of these rules.

Form I

[Substituted by Notification No. G.S.R. 1005(E), dated 8.8.2017 (w.e.f. 16.7.1959).]

[Rule 3(1)]

I _____ son of/ wife of/ Daughter of _____ Age _____ Residence _____ hereby declare that I

(a)

I am a Sikh;

(b)

I do not trim or shave my beard or Keshas;

(c)

I do not smoke or use kutha (Halal) meat, in any form;

(d)

do not take alcoholic drinks; and

(e)

am not a *patit:

Signature/Thumb Mark**

* patit means a person who being Keshdhari Sikh trims or shaves his beard or keshas or who after taking Amrit commits any one or more of the four Kurahits.

**in case of an illiterate he should repeat the declaration, as read out from the Form, and then thumb mark the Form.

(Further declaration to be made by Scheduled Caste applicant)

I hereby declare that I am a member of the caste which has been declared to be a Scheduled Caste under Article 341 of the Constitution.

Signature/ Thumb Mark;].

**In case of an illiterate he should repeat the declaration, as read out from the Form, and then thumb mark the Form

[Proviso to rule 3 sub rule (1)]

(Further declaration to be made by Scheduled Caste applicant)

I hereby declaration that I am a member of the _____ caste which has been declared to be a Scheduled Caste under Article 341 of the Constitution.

Signature/Thumb Mark

[FORM I-A]

[Omitted by Notification No. G.S.R. 1005(E), dated 8.8.2017 (w.e.f. 16.7.1959).]

(b) FORM I-A (ForSehajdariSikh)

[Rule 3(1)]

I _____ son of/wife of/daughter of _____ Age _____ Residence _____ hereby declare that I am a Sehajdhari Sikh and I -

(a) perform ceremonies according to Sikh rites;

(b) do not use tobacco or kutha (Hala) meat, in any form;

(c) do not use alcoholic drinks;

(d) am not a*patit;and

(e) can recite mullmantar.

Signature/Thumb Mark**

*Patit means a person, who being Keshdhari Sikh trims or shaves his beard or keshas or who after taking Amrit commits any one or more of four Kurahits. [Section 2(11) of the Act].

**In case of an illiterate he should repeat the declaration, as read out from the Form, and then thumb mark the Form
[Proviso to rule 3 sub rule (1)]

(further declaration to be made by a Scheduled Caste applicant)

I hereby declare that I am a member of the _____ caste which has been declare that I am a member of the _____ caste which has been declared to a Scheduled Caste under Article 341 of the Constitution.

Signature/Thumb Mark

FORM II

[Rule 8 (5)]

Gurdwara Board Electoral Roll

.....District Constituency

Register of Claims for Registration

Tehsil

Serial No,

Thana and Village _____ Town and Ward in which registration is claimed

Name, father's Name, age and occupation of claimant

Date of presentation of claim to authority to whom it is presented with initials of such authority

Date of decision, with note as to presence of parties

Decision

_____ Admitted Signature

Rejected of

Revising

Authority

Signature of official by whom effect was given to the decision of the Revising authority and date

1

2

3

4

5

6

7 8

9

FORM III

[Rule 8 (5)]

Gurdwaras Board Electrol Roll

_____ District _____ Constituency

Register of Objections to Registration

Person objected to be Registered

Name and decription and number of objector on roll

Date of presentation of objection to authority to whom it is presented with initials of such authority

Name of process server by whom duplicate sent to be served on person objected to and date

_____ Abstract of process server's report and date

_____ Date of decision with note as to presence of parties

Signature of Revising Authority Admitted/ Rejected

Decision

_____ Signature of official by whom effect was given to the decision of the Revising Authority and date

Serial No.

Thana and Village in town and ward

Under name

With number on roll

1

2
3
4
5
6
7
8
9

10 11

12
13

FORM IV

[Rule 15]

Nomination Paper

Election to the Sikh Gurdwara Board

(To be filled by the proposer)

I hereby nominate _____ as a candidate for election from the Board constituency _____

1. Full name of proposer _____

2. Serial number of proposer in the electoral roll of the constituency in which the candidate is being nominated for election _____ and name of Thana or Zail/Patwar Circle.

_____,

Town

3. Name of the candidate's Father/Husband _____

4. Full postal address of candidate _____

5. Constituency on electoral roll of which the candidate is registered as an elector _____

6. Number of the candidate on the electoral roll of the constituency in which he is registered as elector _____ and name of Thana or Zail/Patwar Circle

_____,

Town

Date _____

*Signature of proposer

*Signature includes thumb-impression

Note - This nomination paper will not be valid unless it is delivered by the candidate either in person or by his proposer or by an agent appointed by authority in writing signed by the candidate and verified by a Magistrate, sub-registrar, sarpanch, nayaye pradhan, lambardar or member of legislature or local body to the returning officer or other person authorised to receive it at his office within the prescribed time.

(To be filled by the candidate)

[Declaration]

[Inserted vide MOH Notification No. G.S.R. 302(E), dated 30.3.1995.]

I, the above-mentioned candidate, assent to this nomination and hereby declare -

(a)

that I have completed _____ years of age.

(b)

[that I do not suffer from any of the ineligibilities enumerated in Section 45 of the Sikh Gurdwaras Act, 1925.]

[Inserted vide MOH Notification No. G.S.R. 302(E), dated 30.3.1995.]

(c)

that the symbols I have chosen are in order of preference :-

(i)

(ii)

_____ and

(iii)

Date _____ Signature of Candidate.

(Further declaration to be made by a Scheduled Caste Candidate).

I hereby declare that I am a member of the _____ caste which has been declared to be a Scheduled Caste for the State of Punjab.

Date _____ Signature of Candidate

Attested

Magistrate

(To be filled by the Returning Officer)

Serial number of nomination paper _____

This nomination was delivered to me at my office at _____ (hour) on _____ (date) by the candidate/proposer/duly authorised agent.

Date _____ Returning Officer,

Decision of returning officer accepting or rejecting the nomination paper.

I have scrutinised the eligibility of the candidate and proposer and find that they are respectively qualified to stand for election and to propose the nomination and therefore accept the nomination.

OR

I have scrutinised this nomination and reject it for the following reasons :-

Date _____

Signature of Officerscrutinising the nomination.

The symbol assigned to the candidate is _____

Signature of Returning Officer.

Receipt of nomination paper and notice of scrutiny

(To be handed over to the person presenting the nomination paper)

Serial number of nomination paper _____

The nomination paper of _____ a candidate for election from the _____ Board constituency, was delivered to me at my office at _____ (hour) on _____ (date) by the candidate/proposer/duly authorised agent. All nomination papers will be taken up for scrutiny at _____ (hour) on _____ (date) _____ at _____ (place).

Date _____ Returning Officer

[FORM IV-A]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 20(1)]

Notice of Withdrawal of Candidature to be given by the candidate Election to the Sikh Gurudwara Board

The Returning Officer

I _____ a (candidate validly nominated at the above election) do hereby give notice that I withdraw my candidature.

Place :

Date _____ Signature of (validly nominated candidate).

This notice was delivered to me at my office at _____ (hour) on _____ (date) by _____ (name) the _____.

Date : _____ Returning Officer.

Receipt of Notice of Withdrawal

(To be handed over to the person delivering the notice)

The notice of withdrawal of candidature by _____ a (validly nominated candidate) at the election to the Sikh Gurudwaras Board was delivered to me by the _____ at my office at _____ (hour) on _____ (date).

Returning Officer.

[FORM IV-B]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 20(1)]

Notice of withdrawal of Candidature to be given by the Returning Officer Election to the Sikh Gurudwara Board

Notice is hereby given that the following validly nominated candidate/candidates at the above election withdraw his candidature/their candidatures today.

Name of (validly nominated candidate) _____ Address of (validly nominated candidate) _____

Remarks

- 1.
- 2.
- 3.
- etc.

Dated _____ Returning Officer.

[FORM IV-C]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 25-A(1)]

Appointment of Election Agent

To

The Returning Officer,

I, _____ son of _____ a candidate at the election of the membership of the Board do hereby appoint _____ son of _____ of _____ as my election agent from this day at the above election.

Place _____

Date _____ Signature of the Candidate.

[FORM IV-D]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See Rule 25-A(2)]

Revocation of appointment of Election Agent

To

The Returning Officer,

I, _____ son of _____ a candidate at the election of membership of the Board hereby revoke the appointment of Shri _____ son of _____ of _____ my election agent.

Place _____

Date _____ Signature of the Candidate

[FORM IV-E]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 25-B(1)]

Appointment of Polling Agent

I, _____ son of _____ of _____ candidate at the election of membership of the Board do hereby appoint _____ (Name and address) _____ as a Polling Agent to attend Polling Station No. _____ at _____ place fixed for the poll at _____.

Place _____

Date _____ Signature of the Candidate.

I, _____ son of _____ of _____ agree to act as such Polling agent.

Signature of the Polling Agent.

Declaration of the Polling Agent to be signed before the Presiding Officer.

I hereby declare that at the above election I will not do anything forbidden by Section 151 of the Sikh Gurudwara Act, 1925, which I have read/has been read over to me.

Date _____ Signature of the Polling Agent.

Signed before me.

Date _____ Presiding Officer.

[FORM IV-F]

[Forms IV-A to IV-F added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 25-B(3)]

Revocation of appointment of Polling Agent.

To

The Presiding Officer,

I, _____ son of _____ a candidate at the election for the membership of the Board hereby revoke the appointment of _____ my polling agent.

Place _____

Date _____

Signature of the candidate.

FORM V

(Rule 41)

Serial No _____

Election for _____

Constituency _____

Polling Station _____

Name of voter _____

No. in electoral roll _____

Name of candidate or candidates for whom this is tendered.

(a)

for non-reserved seat _____

(b)

for reserved seat _____

Date _____

Signature of the Presiding Officer

Form VI

(Rule 41)

Tendered votes list

Polling Station.....

Name of constituency

Name of voter

No. in electoral roll

Signature of voter, if literate, or thumb-impression, if illiterate, with his address

Date.....

Signature of the Presiding Officer

Form VII

(Rule 42)

List of Challenged Votes

Polling Station. _____

Signature Sheet No _____

Name of constituency

No, on electoral roll

Name

Signature of voter, if literate, or thumb-impression, of voter, if illiterate

Name of identifier if any

Order of Presiding Officer (in each case)

Form VIII

[Rule 47(1)]

Account of ballot-papers

Constituency _____

Polling Station _____

District _____

BALLOT-PAPERS

...

...

Particulars

Serial No....., From To Total

Received

...

Non-reserved seat

...

Reserved seat

...

Issued

...

Non-reserved seat

...

Reserved seat

...

Unissued

...

Non-reserved seat

...

Reserved seat

...

ACCOUNT OF TOTAL

BALLOT-PAPERS ISSUED

Total issued

Total returned spoilt

Balance total in ballotbox(es)

Non-reserved seat

...

Reserved seat

...

TENDERED

BALLOT-PAPERS

Serial No. From to Total

Received

...

Issued

...

Unissued

...

ACCOUNT OF TOTAL

TENDERED BALLOT-PAPERS ISSUED

Total issued

Total returned spolit

Balance total in parcel

Date _____

Signature of presiding officer.

[FORM VIII-A]

[Forms VIII-A and VIII-B added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 50-B(2)]

Appointment of Counting Agents

Election to the Sikh Gurudwara Board

To

The Returning Officer,

I, _____ son of _____ a candidate at the election of membership of the Board, do hereby appoint the following persons as my counting agents to attend the counting of votes at _____.

Name of the Counting agent

Address of the Counting Agent

1

2

3

etc.

We agree to act as such counting agents

Signature of candidate

1

2

3

etc.

Place _____

Date _____ Signature(s) of Counting Agent.

I, _____ son of _____ of _____ accept my above appointment.

Place _____

Date _____

Signature of the Election Agent.

Approved

Signature and seal of the Returning Officer.

DECLARATION OF COUNTING AGENTS

(To be signed before the Returning Officer)

I/We hereby declare that at the above election we will not do anything forbidden by Section 151 of the Sikh Gurudwaras Act, 1925 which I/We have read/has been read over to us.

1.

2.

3.

etc.

Date _____ Signature of Counting Agent(s).

Signed before the

Date _____ Assistant Returning Officer/Returning Officer.

FORM VIII-B

[Forms VIII-A and VIII-B added by Central Government Notification No. G.S.R.278(E) dated 4.4.2002.]

[See rule 50-B(4)]

Revocation of Appointment of Counting Agent

Election to the Sikh Gurudwara Board

To

The Returning Officer,

I, _____ son of _____ a candidate at the election of membership of the Board hereby revoke the appointment of _____ my counting agent.

Place _____

Date _____ Signature of Candidate.]

Form IX

[Rule 51(4)]

Record of Rejected Ballot-Papers

Election to the Sikh Gurdwaras Board from _____ Constituency

Serial number and name of Polling Station _____

Serial No. of entry

Serial No.of ballot-paper

Brief grounds of rejection

Serial No. of entry

Serial No. of the ballot-paper

Brief grounds of rejection

Signature of Presiding Officer

Place_____

Date_____

Form X

[Rule 52(2) and 53(3)]

Result Sheet

Election to the Sikh Gurdwaras Board from _____ Constituency

Serial number and name of Polling Station_____

Serial No.

Name of candidate

Number of valid votes

Number of rejected votes

Total number of votes

Signature of Presiding Officer/Returning Officer.

Place_____

Date_____

Form XI

[The Chief Commissioner when in existence otherwise the Commissioner, Gurdwara Elections], shall fix the date or dates on, by or within which -

[Rules 53(7)]

Final Result Sheet

Election to the Sikh Gurdwaras Board from_____Constituency

Polling Station

Number of valid votes cast in favour of

Number of votes polled

.....

.....

REMARKS

Serial

Name

ABCD

Valid

Rejected

Total for Polling Station.

Votes polled by post.

Total number of votes polled in the constituency_____

Place_____

Date_____

Signature of Returning Officer.

Related AI tags, queries and research notes

Translation